ANTONY KASHIRI
versus
PRETTY MASUKUME
and
HANSEN NQABANGO MASUKUME

IN THE HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 26 March, 14 May & 9 July 2026

Civil Trial

N. Tambirayi, for the plaintiff
B. Nyamwanza for the defendants

SIZIBA J:

[1] The plaintiff sued the defendants for various claims arising from a joint venture mining partnership which was verbally concluded sometime in August 2021. He alleged that the parties agreed to work together in the mining and processing of gold ore at the defendants' mine. They were to share the profits. In his declaration, the plaintiff stated that he went on to set up a milling plant at the defendants' mine at his own cost and paid all outstanding mine debts and commenced mining. It is the plaintiff's claim that the parties agreed that he should drill a borehole at his own cost, which cost was to be recovered later. According to the plaintiff, he drilled the borehole at a cost of US$1 800. When the mining process started, the parties failed to get gold ore from the defendants' mine. They then agreed to source the ore from elsewhere and mill it on the site to generate sands to be leached. In June 2022, the plaintiff started leaching sands. Further, in July 2022 sands were submitted for elusion and they realized US$11 388. The plaintiff declared that he paid 25 per cent of the sales to the defendants, which amounted to US$2 840. The rest of the money was used to pay the mine's expenses.

[2] In August 2022 the defendants proposed to have their share of profits in the form of sands. They would repay plaintiff the US$2 840 after leaching. The defendants took sands for leaching but failed to pay plaintiff the US$2 840 on the pretext that they were paying their son's wedding expenses. The plaintiff further stated that the defendants also borrowed US$1 500 from the plaintiff to cover their bills. He also alleged that the defendants owed him US$455 as he had paid for leaching chemicals on their behalf which sum they had failed to reimburse him after elution of the sands.

[3] When the parties developed irreconcilable differences sometime in October or November 2022, the defendants offered to compensate plaintiff for the structures he had erected at the mine but they did not honor the promise. The plaintiff further stated that at the time the parties parted ways there were about 250 tones of gold sands on site which remained in the possession and control of the defendants and thus, according to the plaintiff, he was entitled to his share of the sands at the ratio of 70:30, with plaintiff getting the bigger share as agreed. The plaintiff thus prayed for the following relief:

a. US$1 800 being the cost of drilling and erecting the borehole. Alternatively, being the amount by which the defendants were unjustly enriched.
b. US$2 840 being the amount advanced to the defendants which they have not repaid to date.
c. US$1 500 being an amount advanced to the defendants which they have failed to pay to date.
d. US$455 being the cost/value of chemicals borrowed by the defendants.
e. Interest at the prescribed rate on each of the aforestated claims from the date of summons to date of payment in full.
f. 70 percent share of the unprocessed gold sands currently in the defendants' possession and control.
g. Costs of suit on attorney-client scale.

[4] The defendants defended the claim. In their Plea, the defendants denied being indebted to the plaintiff for the cost of drilling the borehole as they did not make any undertaking to refund the plaintiff for drilling the borehole nor setting up a milling plant at the mining claim. It was the defendants' averment that since it was a joint venture agreement, it was

the plaintiff's input and obligation into the joint venture to drill the borehole and set up the milling plant. The defendants further denied the 25 percent arrangement or the promise to pay US$2 840 after leaching as claimed by the plaintiff. They also denied ever borrowing the US$1 500 or the US$455 for leaching chemicals from the plaintiff as he claimed.

[5] The issues referred to trial were whether the plaintiff is entitled to a refund of US$1 800 for drilling a borehole at defendants' mining claim, whether the plaintiff loaned the defendants US$2 800, US$1 500 and chemicals worth US$455, whether plaintiff is entitled to 70 percent share of the unprocessed sands at defendants' mine and the issue of costs.

EVIDENCE ADDUCED IN COURT

[6] The plaintiff led evidence from four witnesses which shall be summarized hereunder. The first witness was the plaintiff himself. He testified that he was approached by the first defendant at his house, asking for US$1 500 which she wanted to use to pay for taxes and inspection fees that had accrued at the Ministry of Mines, which amount he advanced to the first defendant but she had not yet paid it back as agreed. He further testified that he drilled a borehole at the defendants' mining claim at the cost of US$1 800, which borehole was to be used by the partnership in the processing of the gold ore at the defendants' mine, but after a few months he was ordered to vacate the premises. It was the plaintiff's testimony that the borehole barely served its purpose because the relationship between the parties had grown sour, that is why he claimed the reimbursement of the US$1 800 which he used to drill the borehole. The plaintiff also testified to the effect that the defendants owed him chemicals worth US$455 which they had used to process sands for gold ore, which amount they never reimbursed to the plaintiff. He further testified that when the parties entered into the verbal agreement, they were going to share proceeds at the ratio of 75:25. When the first processing of gold earned them US$11 388, the plaintiff gave the defendants US$2 840 as their agreed share, however, they were not satisfied by the share and they demanded that they be given their own sands so that they could process their own gold ore, and they made an undertaking to pay back the US$2 840, but they never did so.

[7] The plaintiff also testified that when he was ordered to vacate the defendants' mine, he left sands containing gold ore at the defendants' mine which they had agreed to share at the ratio of 70:30, but they never did so until the commencement of the trial.

[8] The plaintiff's second witness, Pegnatious Mhembere, testified to the effect that there indeed was a mining partnership between the plaintiff and the defendants. As the wife to the plaintiff, she testified that the first defendant would frequently come to her house seeking financial assistance. She attended all the meetings between the plaintiff and the defendants. This witness further testified that on a certain day, the first defendant came to their house seeking financial assistance to clear some debts which had accrued at the mine before they came into partnership and also at her workplace known as Jubilee Gardens. She and her husband advanced US$1 500 to the first defendant to cover these debts. She is the one who handed the money to the first defendant.

[9] The plaintiff's third witness, Bornwell Mhembere, testified to the effect that he was not party to the verbal agreement between the plaintiff and the defendants but he was in an arrangement with his brother-in-law, the plaintiff, where he would be working with him as a silent partner. In regards to the issues that are a bone of contention, the third witness testified that after the first round of leaching, the plaintiff and the defendants agreed to share proceeds at the ratio of 75:25, with the plaintiff getting 75 percent and the defendants getting 25 percent of the profits. It was the witness' evidence that after the first leaching round, the parties got US$11 388. The defendants were given US$2 840 as per their 25 percent share. However, the defendants were not satisfied with that share. They decided to get their portion of the sands so that they could leach on their own and they made an undertaking to pay back the US$2 840 in exchange of the sands. According to the third witness, that is where the claim for US$2 840 is emanating from.

[10] The fourth witness, Arnold Tazivezvavo, testified to the effect that he was hired by the plaintiff to be a security guard at the defendants' mine. He further indicated that there were sands at the defendants' mine which he was asked to guard. He was not able to give a rough estimate of how much sand was left on the property. He told the court that when the relationship between the parties became sour, he came to his guard room to find that the locks to that room were changed, denying access thereof. He disagreed with the defendants

that they did not know each other. He insisted that there was sand that was left at their mine when the parties parted ways.

[11] At the close of the plaintiff's case, the defendants applied for absolution from the instance. This court granted the application for absolution from the instance only in relation to the debt of US$2 840 which had not been properly articulated by the plaintiff in his evidence. The defendants were put to their defense regarding the rest of the plaintiff's claims.

[12] The first and second defendants were a married couple. In her testimony, the first defendant agreed that there was indeed a verbal agreement between them and the plaintiff which was never put to writing. She told the court that in their initial agreement, they agreed that the plaintiff was to come with things that were not available at the mine which would make the mining process easier. The plaintiff then brought a hummer mill and a crusher. Before the plaintiff came onto the defendants' mine, they had a compressor, jack hammers, generator, workers' quarters, seven thousand (7 000) bricks to build tanks and enough water for all the mining processes as signaled by two Jojo tanks which had the capacity of 10 000 litres and 1 000 litres respectively. In regards to the drilling of the borehole, the first defendant agreed to the fact that indeed the plaintiff drilled a borehole on their mine, however, it was her testimony that they had not agreed to refund the plaintiff for drilling the borehole as it was part of his capital contribution to the partnership. She further told this court that the borehole was drilled without her knowledge and she did not get any quotation or receipts indicating the amount injected for the borehole, and, as a result, she could not be asked to refund the plaintiff for the value of such a borehole. As for the US$1 500 debt and the US$455 for leaching chemicals, the first defendant outrightly denied knowledge of such amounts. She also denied that there were any sands left at their mine. The second defendant came in to corroborate the first defendant's testimony about the events at the mine. He also denied that they were liable to the plaintiff in any respect.

ANALYSIS OF THE EVIDENCE AND FINDINGS BY THE COURT

[13] Plaintiff's counsel submitted that the defendants were unjustly enriched and that the plaintiff was impoverished as he ended up not benefitting from the borehole when he vacated the defendant's mine. On the other hand, counsel for the defendants submitted that

the plaintiff was not entitled to the reimbursement as claimed because no quotations, invoices, receipts, contracts with drilling contractors, proof of payment, bank records or accounting records were produced in court as evidence of such drilling of the borehole. Counsel further submitted that the plaintiff was not entitled to the reimbursement because the drilling of the borehole was part of his contribution towards the joint venture.

[14] It is this court's finding that the plaintiff drilled a borehole at his own expense at the defendant's mine. The defendants did not deny that the borehole was drilled. The borehole in question was intended to benefit the joint venture which only lasted for a short period. When the relationship between the parties soured, it never materialized as the partnership was terminated. Although the plaintiff did not produce documentary evidence in form of receipts, his explanation that the US$1 400 was a fixed charge for 40 metres while the other US$400 was for the double casing is acceptable to this court on a balance of probabilities. There is no clear evidence adduced by the defendants to justify their position that it was plaintiff's obligation in the partnership to drill a borehole and that he benefited to the value thereof from what he realized from the profits in the joint venture.

[15] The common law on unjust enrichment is settled in this jurisdiction. It allows a party to seek restitution when another individual benefits at their expense without legal justification. For a party claiming restitution under the principle of unjust enrichment to succeed, there are certain requirements that need to be satisfied. The Supreme Court of Zimbabwe in the case of *Gamanje (Pvt) Ltd* v *City of Bulawayo* SC94/04 at p 8 laid out these requirements and they were listed as follows:

1. The defendant has been enriched by the receipt of a benefit;
2. The defendant has been so enriched at the expense of the plaintiff;
3. The enrichment is unjustified (in the sense that it would be unjust to allow the defendant to retain the benefit);
4. The enrichment must not come within the scope of one of the classical enrichment actions.
5. There must be no positive rule of law which refused an action to the impoverished person.

[16] The evidence from both the plaintiff and the defendant shows that a borehole was drilled at the defendants' mine and a few months down the line, their relationship became sour

and the plaintiff was asked to pack his things and leave the mine, but the borehole is still in existence at the defendants' mine. It is further clear from the evidence that the borehole was drilled at the expense of the plaintiff for the benefit of the partnership with the hope that it would grow. However, the relationship soured and the plaintiff was driven off the mine, thus, defendants were unjustly enriched. It is therefore unjust to allow the defendants to retain the benefit of the borehole without compensation to the plaintiff. The testimony by the defendants that the borehole is of no use to them because all the equipment used to run the borehole was either destroyed or taken, lacks merit because it is just a matter of them acquiring the required equipment to resume using the borehole without incurring the cost of drilling. It is thus this court's view that allowing the defendants to retain the borehole without compensation for its drilling amounts to unjust enrichment on the part of the defendants.

[17] The claim for US$1 500 was clearly established and proven by the plaintiff on a balance of probabilities. This is so because, in his evidence, the plaintiff testified that he was approached by the first defendant seeking financial assistance to clear tax debts and inspection fees that had accrued at the Ministry of Mines before their partnership began and he advanced to her US$1 500. This was corroborated by the plaintiff's second witness being his wife who testified that the first defendant came to their house to ask for that sum of money to clear debts which needed to be serviced at her mine and at her workplace. The witness stated that she is the one who handed the first defendant the US$1 500. The evidence presented by the plaintiff in this regard clearly indicates that the first defendant was advanced US$1 500 by the plaintiff which sum of money was a benefit to the defendants. The defendants are obliged to pay back the US$1 500 that was advanced to them.

[18] The plaintiff's claim of USD$455 being the cost/value of chemicals borrowed by the defendants was not proved on a balance of probabilities by the plaintiff. There was a material discrepancy in the amount claimed for chemicals under the earlier case in MTCG 229/23 wherein that sum was pegged at US$370 and not US$455 which is being claimed in this matter. In the absence of documentary evidence in form of receipts, it becomes difficult to accept the plaintiff's oral testimony regarding this claim.

[19] The plaintiff's claim of 70 percent of the gold sand that remained at the defendant's mine when the partnership terminated was not clearly articulated to this court. The plaintiff's prayer in the summons and declaration contains no quantification of this gold sand. The court cannot say that the plaintiff is entitled to 70 percent of a heap of gold sand which has no specified quantity. The quantity must be specific. In terms of paragraph 17 of the plaintiff's declaration, the alleged gold sand was said to be 250 tones. In terms of the sworn testimony of the plaintiff and his brother in law Bornwell Mhembere, the gold sand was estimated by them to be about 250 to 280 tones. No exact quantity was provided to this court. The plaintiff's last witness who guarded the gold sand was unable to estimate the quantity of this gold sand. The plaintiff did not tell this court that there was any form of measurement that he used to ascertain the quantity of the gold sand in question. The defendant has denied this claim and put the plaintiff to his strict proof. This court cannot be drawn into making assumptions and estimates over a quantity of an item which is ascertainable. It was plaintiff's duty to ascertain the exact quantity of the gold sand before filing his claim. The cardinal principle of onus is that he who alleges must prove. See *Zimbabwe United Passenger Company Limited* v *Packhorse Services (Private) Limited* SC 13/17. It is trite that proof in civil matters is on a balance of probabilities. See *Dube* v *Murehwa and Others* SC 68/21. A party who fails to quantify or particularize an item which is the subject of its claim so as to render it impossible or difficult for the court to give a proper or executable remedy when such item could have been quantifiable prior to the commencement of the case cannot be said to have proven its case on a balance of probabilities. This claim of 70 percent of gold sand which was never measured or quantified properly must therefore fail.

[20] The final issue to consider relates to the award of costs. It is trite that costs are in the discretion of the court and that costs follow the successful party. The plaintiff has partially succeeded in his claims while the defendants have also partially succeeded to defend some of the plaintiff's claims. For this reason, it is fair that this court makes no award of costs against either party. Consequently, it is ordered as follows:

a) The defendants shall pay the plaintiff jointly and severally one paying the other to be absolved the sum of US$1 800 or the Zig equivalent being the cost of drilling and erecting the borehole.
b) The defendants shall pay the plaintiff jointly and severally the one paying the other to be absolved the sum of US$1 500 or the Zig equivalent being the amount advanced to the defendants for payment of mining debts and taxes.
c) The plaintiff's claim in the sum of US$455 being the alleged cost/value of chemicals borrowed by the defendants be and is hereby dismissed.
d) The plaintiff's claim of the 70 percent share of the tones of unprocessed gold sands is dismissed.
e) The plaintiff is granted interest to the sums of money specified in paragraphs (a) and (b) above at the prescribed rate from the date of the summons to date of full payment.
f) Each party shall bear its own costs.

Bere Brothers, plaintiff's legal practitioners
Nyamwanza Legal Practice, defendants' legal practitioners